

3.

CASE #	CASE NAME	HEARING NAME
CVRI2506703	CANYON CROSSING LLC VS FITNESS INTERNATIONAL, LLC	MOTION TO COMPEL FURTHER RESPONSES TO THE FIRST SET OF SPECIAL INTERROGATORIES

Tentative Ruling:

Plaintiff complied with its statutory meet and confer duty.

SPROG nos. 1, 6, and 7 ask for documents related to the drafting of the First Amendment, which Plaintiff attached to the SPROGs. (Garcia Decl., Ex. A.) Fitness objects to these SPROGs mainly on the ground that the exhibit referred to as the “First Amendment” is a “stack of documents” that “included many separate documents,” making the SPROGs vague, compound, and conjunctive. (Opposition, pp. 7:20-8:4; Garcia Decl., Ex. B.) However, the attachment actually appears to be one document with exhibits attached thereto and incorporated therein, as opposed to multiple separate documents. (See, Garcia Decl., Ex. 1 to Ex. A, p. 4 at ¶ 7 [referring to and incorporating a form memorandum of lease to be executed and recorded by the tenant] and Ex. A, p. 1 at § A (attaching and incorporating a legal description of the property].) Therefore, this objection lacks merit.

Accordingly, the motion is granted as to SPROG nos. 1 and 6. Defendant is ordered to serve verified, code-compliant further responses within 20 days.

Regarding no. 7, Fitness also objects on the grounds it seeks documents protected by the attorney-client privilege and/or as attorney work product. “The attorney-client privilege, set forth at Evidence Code section 954, confers a privilege on the client “to refuse to disclose, and to prevent another from disclosing, a confidential communication between client and lawyer.” (*Costco Wholesale Corp. v. Superior Court* (2009) 47 Cal.4th 725, 732). “The party claiming privilege carries the burden of showing that the evidence which it seeks to suppress is within the terms of the statute.” (*D. I. Chadbourne, Inc. v. Superior Court of San Francisco* (1964) 60 Cal.2d 723, 729). Evidentiary privileges must be construed narrowly while discovery statutes must be construed liberally. (*Sullivan v. Superior Court* (192) 29 Cal.App.3d 64, 72). Fitness has not presented any evidence that the information sought includes attorney-client communications or attorney work product, and therefore, has not met its burden of showing any of the information sought in SPROG no. 7 is protected.

Therefore, the motion is granted as to SPROG no. 7. Defendant is ordered to serve verified, code-compliant further responses within 20 days.

In SPROG nos. 2 [why did you elect not to exercise renewal options under the Lease], 3 [communications re: claim that exclusive uses provided under the Lease did not expire on 8/26/21], 11 [facts and documents supporting claim that exclusive uses provided under the Lease did not expire on 8/26/21], and 12 [parcels you claim are bound by the exclusive uses provided under the Lease], Plaintiff asks for information related to the

Lease between Transcan and Fitness without attaching the Lease as an exhibit to the SPROGs. (Garcia Decl., Ex. A.) Fitness objected to these SPROGs on several grounds, including that they were not full and complete. (Garcia Decl., Ex. B.)

Pursuant to C.C.P. § 2030.060(d), “[e]ach interrogatory shall be full and complete in and of itself. No preface or instruction shall be included with a set of interrogatories unless it has been approved under Chapter 17 (commencing with Section 2033.710).” This rule is violated when a responding party must necessarily review/consider other materials in order to answer the question. (Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 1996) § 8:979.5; *Catanese v. Superior Court* (1996) 46 Cal.App.4th 1159, 1164, disapproved on other grounds by *Lewis v. Superior Court* (1999) 19 Cal.4th 1232.) In the present case, Fitness is correct that SPROG nos. 2, 3, 11, and 12 cannot be answered without resorting to a separate document, the Lease. Therefore, they are not full and complete in and of themselves.

Accordingly, the motion is denied as to SPROG nos. 2, 3, 11, and 12.

SPROG nos. 4 and 5 seek information about when and how Fitness learned that Transcan sold its parcels in the Shopping Center and that Baypointe only owned one parcel. (Garcia Decl., Ex. A.) Fitness objects to both SPROGs on the ground they are compound. While Fitness is correct that “compound, conjunctive or disjunctive” interrogatories are objectionable, this “rule should probably apply only where more than a single subject is covered by the question. Questions regarding the same subject should be allowed although they include an ‘and’ or ‘or.’” (Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 1996) § 8:979; see also, *Clement v. Alegre* (2009) 177 Cal.App.4th 1277, 1291.) As each of these SPROGs cover a single subject, the Court finds that Fitness’ objection lacks merit. Despite the objection, Fitness provided a substantive response to no. 4, but not to no. 5.

Accordingly, the motion is denied as to SPROG no. 4 but granted as to no. 5. Defendant is ordered to serve verified, code-compliant further responses to SPROG no. 5 within 20 days.

As neither party prevailed entirely on the motion, both parties’ requests for sanctions are denied.

Moving party is ordered to submit a proposed order consistent with this Court’s ruling by no later than June 10, 2026, by 5:00 p.m.

If a timely request for oral argument is made by no later than 4:30 p.m. on June 9, 2026, oral argument will be heard on June 10, 2026 at 10:00 a.m. (not 8:30 a.m.).